

25NNCV00874 25NNCV00874

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Case Number: 25NNCV00874 Hearing Date: September 15, 2026 Dept: E

Hearing

Date: 9/15/2026 – 8:30 a.m.

Case No: 25NNCV00874

Trial Date: 11/2/2026

Case Name: KENYON PLASTERING OF SOUTHERN CALIFORNIA, INC., a California corporation v. CHATEAU OPERATING CORP., a California corporation; et al.

TENTATIVE RULING ON MOTION TO COMPEL
ARBITRATION

RELIEF REQUESTED

Defendant, Chateau Operating Corp.

(Chateau), moves for an order compelling Kenyon Plastering of Southern California, Inc. (Kenyon) and Techno-Advanced, Inc. (Techno-Advanced) to arbitrate its claims against Chateau, and staying this action as to those claims pending completion of arbitration.

Defendant, Chateau, moves pursuant to CCP §§ 1281.2 and 1281.4 on the grounds that it entered into separate written subcontracts with Kenyon and Techno-Advanced governing their respective work on the Province project, and each subcontract contains a mandatory, binding arbitration provision.

PROCEDURAL

Moving

Party: Defendant, Chateau Operating Corp. (Defendant or Chateau)

Responding

Party: No opposition

Moving

Papers: Motion; Notice; Declaration Erik A. Gonzalez; Proposed Order;

Opposing

Papers: No opposition

Reply

Papers: No reply

BACKGROUND

Plaintiff, Kenyon Plastering of

Southern California, Inc., a California corporation (Kenyon), filed the instant action on 2/7/2025 against Defendants – (1) Chateau Operating Corp., a California corporation (Chateau); (2) UP Province Holding, LLC, a Delaware limited liability company; (3) Trimont LLC, a Georgia limited liability company; (4) American Contractors Indemnity Company, a California corporation (ACIC); and (5) Does 1-100 inclusive.

Plaintiff's Complaint alleges that Plaintiff is a contractor. (Compl., ¶ 2.)

Plaintiff's Complaint alleges that UP

Province Holding, LLC is the alleged Owner of the subject property. (Compl., ¶ 4.)

Plaintiff alleges that Trimont LLC is a Lender. (Compl., ¶ 5.)

Plaintiff's Complaint contains causes

of action for: (1) Monies Due; (2) Quantum Meruit; (3) Breach of Contract; (4) Account Stated; (5) Foreclosure of Mechanic's Lien; (6) Recovery on Contractor's License Bond; and (7) Declaratory Relief.

The first (Monies Due) and second (Quantum Meruit) causes of action are alleged against Chateau and Owner (UP Province Holding, LLC).

The third (Breach of Contract), fourth (Account Stated), and seventh (Declaratory Relief) causes of action are alleged against Chateau.

The fifth cause of action (Foreclosure of Mechanic's Lien) is alleged against Owner (UP Province Holding, LLC) and Lender (Trimont LLC).

The sixth cause of action (Recovery on Contractor's License Bond) is alleged against Chateau and ACIC.

On 6/25/2025, Defendant, American Contractors Indemnity Company (ACIC), filed a cross-complaint against Cross-Defendants – (1) Kenyon Plastering of Southern California, Inc., a California corporation; (2) Chateau Operating Corp., a California corporation; and (3) Roes 1-50 inclusive.

ACIC's Cross-Complaint contains one cause of action for inter-pleader.

On 10/22/2025, Plaintiff (Kenyon) dismissed (without prejudice) Lender (Trimont LLC).

On 10/23/2025 Plaintiff named Defendant, Doe 1 as BP Holdings Rho LLC, a Delaware limited liability company.

On 11/25/2025, Plaintiff dismissed (without prejudice) the following causes of action against Defendant, BP Holdings Rho LLC: (1) Monies Due; (2) Quantum Meruit; (3) Breach of Contract; (4) Account Stated; (6) Recovery on Contractor's License Bond; and (7) Declaratory Relief.

Or to phrase it differently, it appears that the only cause of action that was not dismissed against Defendant, BP Holdings Rho LLC, was the fifth cause of action for Foreclosure

of Mechanic's Lien.

On 1/27/2026, Plaintiff dismissed
(without prejudice) Defendant, American Contractors Indemnity Company.

Defendant, Chateau Operating Corp.
(Chateau), moves for an order compelling Kenyon Plastering of Southern
California, Inc. (Kenyon or Plaintiff) and Techno-Advanced, Inc.
(Techno-Advanced) to arbitrate its claims against Chateau.

LEGAL STANDARD

Code of Civil Procedure, section
1281.2, governing orders to arbitrate controversies, provides in pertinent
part:

On petition of a party to an arbitration agreement alleging
the existence of a written agreement to arbitrate a controversy and that a
party to the agreement refuses to arbitrate that controversy, the court shall
order the petitioner and the respondent to arbitrate the controversy if it
determines that an agreement to arbitrate the controversy exists, unless it
determines that:

(a) The right to compel arbitration has been waived by
the petitioner; or

(b) Grounds exist for rescission of the agreement.

(CCP, § 1281.2(a)-(b).)

The party seeking arbitration bears the
initial burden of demonstrating the existence of an arbitration agreement. (Pinnacle
Museum Tower Assn. v. Pinnacle Market Development (US), LLC (2012) 55
Cal.4th 223, 236.) In ruling on a motion to compel arbitration, the court must
first determine whether the parties actually agreed to arbitrate the dispute,
and general principles of California contract law help guide the court in
making this determination. (Mendez v. Mid-Wilshire Health Care Center
(2013) 220 Cal.App.4th 534, 541; Victoria v. Superior Court (1985) 40
Cal. 3d 734, 835.)

Even when the FAA applies,
“interpretation of the arbitration agreement is governed by state law
principles.” (Hotels Nevada, LLC v. Bridge Banc, LLC (2005) 130
Cal.App.4th 1431, 1435.)

There is a strong public policy in
favor of arbitration of disputes and any doubts concerning the scope of
arbitrable disputes should be resolved in favor of arbitration. (Moncharsh
v. Heily & Blase (1992) 3 Cal.4th 1, 9 (“courts will ‘indulge every
intendment to give effect to such proceedings.’”) (quotation omitted)). (See
also AT&T Mobility, LLC v. Concepcion (2011) 563 U.S. 333, 339.)

Under the Federal Arbitration Act,
arbitration agreements “shall be valid, irrevocable and enforceable, save upon
such grounds that exist at law or in equity for the revocation of a
contract.” (9 U.S.C. § 2.)

TENTATIVE RULING

Service

At the hearing, the Court will hear
argument as to whether or not Moving Defendant (Chateau) needed to serve
Defendant, UP Province Holding, LLC, the instant motion.

In the Court’s record, the Court sees
dismissals of Defendant, Trimont LLC, on 10/22/2025 and Defendant, American
Contractors Indemnity Company on 1/27/2026.

However, the Court does not see a
dismissal of Defendant, UP Province Holding, LLC; therefore, the Court will
hear argument on whether or not Defendant, UP Province Holding, LLC, should
have been served the instant motion.

Further, in addition to Moving
Defendant (Chateau) seeking to compel Plaintiff (Kenyon) to arbitration,
Chateau is also seeking to compel non-party Techno-Advanced, Inc. to
arbitration via the instant motion. The Court will hear argument on whether
Chateau can compel a non-party (Techno-Advanced) to arbitration. Further,
Chateau appears to include Techno-Advanced’s attorney on the proof of service

for the instant motion, but the Court has no way of confirming on eCourt what Techno-Advanced's attorney's service address is because Techno-Advanced is not a party to the instant lawsuit. The Court to hear argument.

Substantive

Moving Defendant, Chateau, explains that it is the developer of the Province construction project.

In connection with that project, Chateau argues that it entered into separate written subcontracts with Kenyon (Plaintiff) and Techno-Advanced (non-party) for their respective scopes of work.

Chateau argues that both subcontracts contain mandatory arbitration provisions requiring disputes arising from the parties' contractual relationships to be resolved through binding arbitration rather than litigation.

As a general rule, the right to arbitration depends on a contract, and a party can be compelled to submit a dispute to arbitration only if the party has agreed in writing to do so. (Matthau v. Superior Court (2007) 151 Cal.App.4th 593, 598.)

The policy favoring arbitration does not eliminate the need for an agreement to arbitrate and does not extend to persons who are not parties to an agreement to arbitrate. (Matthau v. Superior Court (2007) 151 Cal.App.4th 593, 598 citing Boys Club of San Fernando Valley, Inc. v. Fidelity & Deposit Co. (1992) 6 Cal.App.4th 1266, 1271.)

The party seeking arbitration bears the initial burden of demonstrating the existence of an arbitration agreement. (Pinnacle Museum Tower Assn. v. Pinnacle Market Development (US), LLC (2012) 55 Cal.4th 223, 236.)

Further as explained in Kostandian v. American Honda Motor Co., Inc.:

"With respect to the moving party's burden to provide

evidence of the existence of an agreement to arbitrate, it is generally sufficient for that party to present a copy of the contract to the court.” (Baker v. Italian Maple Holdings, LLC (2017) 13 Cal.App.5th 1152, 1160, 220 Cal.Rptr.3d 887.) Further, “unless there is a dispute over authenticity, it is sufficient for a party moving to compel arbitration to recite the terms of the governing provision.” (Sprunk v. Prisma LLC (2017) 14 Cal.App.5th 785, 793, 222 Cal.Rptr.3d 339.) Under Code of Civil Procedure section 1281.2, “the court shall order the petitioner and the respondent to arbitrate the controversy if it determines that an agreement to arbitrate the controversy exists” “The statute does not require the petitioner to introduce the agreement into evidence. A plain reading of the statute indicates that as a preliminary matter the court is only required to make a finding of the agreement's existence, not an evidentiary determination of its validity.” (Condee v. Longwood Management Corp. (2001) 88 Cal.App.4th 215, 219, 105 Cal.Rptr.2d 597 (Condee).)

(Kostandian v. American Honda Motor Co., Inc. (2026) 120 Cal.App.5th 872, 879.)

“A petition to compel arbitration or to stay proceedings pursuant to Code of Civil Procedure sections 1281.2 and 1281.4 must state, in addition to other required allegations, the provisions of the written agreement and the paragraph that provides for arbitration. The provisions must be stated verbatim or a copy must be physically or electronically attached to the petition and incorporated by reference.” (CRC, rule 3.1330.)

Once the Court concludes an arbitration agreement exists, it must then consider whether the agreement covers the claims at issue. (Omar v. Ralphs Grocery (2004) 118 Cal.App.4th 966, 960.)

Here, Moving Defendant (Chateau) comes forward with two agreements.

Exhibit 1 is a copy of a Subcontract Agreement between Plaintiff (Kenyon Plastering of Southern California, Inc.) and Moving Defendant (Chateau Operating Corp.). (See Gonzalez Decl., Ex. 1.)

It appears that the Subcontract

Agreement in Exhibit 1 was signed by Chateau on 10/4/2021 and signed by Kenyon on 9/30/2021. (See Gonzalez Decl., Ex. 1, p. 23.)

Exhibit 2 is a copy of a Subcontract Agreement between non-party, Techno-Advanced, Inc., and Moving Defendant (Chateau Operating Corp.). (See Gonzalez Decl., Ex. 2.)

It appears that the Subcontract Agreement in Exhibit 2 was signed by Chateau on 7/7/2021 and signed by Techno-Advanced, Inc. on 3/29/2021. (See Gonzalez Decl., Ex. 2, p. 21.)

Both Subcontract Agreements contain the following relevant provision:

18.2 Binding Arbitration. All disputes shall be subject to binding arbitration conducted by JAMS, in accordance with the JAMS rules ("JAMS Rules") then applicable to the claims presented, as supplemented by this Section. The following supplemental rules shall apply to all arbitration proceedings and shall govern in the event of a conflict between the rules set forth below and the rules of JAMS Rules.

A. Agreement to Arbitrate. Contractor and Subcontractor shall resolve disputes exclusively through binding arbitration in the county in which the Project is located. This arbitration provision shall apply to disputes of any kind or nature regardless of the nature of the relief sought.

B. Waiver of Trial by Judge or Jury. By agreeing to resolve all disputes through binding arbitration, Contractor and Subcontractor each give up the right to have their respective claims and defenses decided by a judge or a jury. All claims and defenses shall instead be decided by the arbitrator.

C. Participation by Other Parties. Contractor and Subcontractor may have all necessary and appropriate parties included as parties to the arbitration. Subcontractor agrees to participate in and be bound by any arbitration proceeding between Contractor and any third party, including Owner and unit purchasers, relating to the Work. Notwithstanding any provision in this section to the contrary, Contractor shall be entitled to terminate this Agreement in whole or in part, if any dispute arises between Subcontractor and Contractor, whereupon Contractor shall also be entitled to exercise any and all remedies, deductions, and offsets authorized pursuant to this Agreement. Notwithstanding

any other provision of this paragraph, if a subcontractor or material supplier of Subcontractor, or any other necessary third party, cannot be forced to mediate or arbitrate, Contractor may elect to unilaterally waive mediation and arbitration.

(Gonzalez Decl., Ex. 1, p. 19 & Ex. 2., p. 18.)

Here, the Court will hear argument.

As a preliminary matter, the Court notes that no oppositions were submitted for the instant motion.

Moving Defendant, Chateau, demonstrates the existence of the arbitration agreements (via the Subcontract Agreements) between Chateau and Plaintiff (Kenyon) and Chateau and non-party (Techno-Advanced).

The problem here is that the Court is not quite clear how/if Chateau can compel a non-party (Techno-Advanced) to arbitration.

The Court to hear argument on whether or not Chateau can compel a non-party (Techno-Advanced) to arbitration.

Further, with respect to both arbitration agreements, Chateau did not explain in a clear manner how Plaintiff's (Kenyon) claims fall within the scope of the claims covered in the arbitration agreements. Therefore, the Court to hear argument on whether or not Plaintiff's claims fall within the scope of the claims covered by the arbitration agreements. Further, with respect to non-party (Techno-Advanced), how can the Court determine whether or not the scope of the claims in the Arbitration Agreement fall within the scope of the claims asserted against Chateau when Techno-Advanced hasn't filed claims against Chateau?

Additionally, how does the Court know whether or not Chateau properly served non-party (Techno-Advanced) when Techno-Advanced is not listed as a party on eCourt?

Further, the Court to hear argument as

to why Chateau did not serve Defendant, UP Province Holding, LLC, the instant motion.